

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: July 01, 2026

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#	Case Name	Tentative
1.	2025-1505236 Executive Financial Enterprises, Inc. vs. Patriot Golf Inc.	The unopposed motion by Defendant Patriot Golf, Inc. ("Defendant") for an order vacating the default and default judgment entered against Defendant is granted. Defendant seeks both discretionary and mandatory relief from the default and default judgment entered against Defendant. Plaintiff did not oppose the motion. <u>Applicable legal authority</u> "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken..." (Code Civ. Proc., § 473, subd. (b).) The Court "shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is

accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310." (Code Civ. Proc., § 473, subd. (b).)

"[T]he law favors disposing of cases on their merits." (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696.) Any doubts in applying California Code of Civil Procedure section 473 "must be resolved in favor of the party seeking relief from default." (*Id.*) A Court order denying relief "is scrutinized more carefully than an order permitting trial on the merits." (*Id.*) As such, if a party promptly seeks relief and there is no showing of prejudice to the non-defaulting party, "very slight evidence will be required to justify a court in setting aside the default." (*Id.* [internal citations omitted].)

The moving party carries the burden of establishing inadvertence, surprise, mistake or excusable neglect by a preponderance of the evidence. (*Transit Ads, Inc. v. Tanner Motor Livery, Ltd.* (1969) 270 Cal.App.2d 275, 279.) Also, the neglect of counsel is generally imputed to the client. (*See, Elston v. City of Turlock* (1985) 38 Cal.3d 227, 236.)

One ground for discretionary relief is inadvertence. In *Elm v. Elm* (1946) 72 Cal.App.2d 508, the court explained that: "To warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. Freeman on Judgments, 5th Ed., Vol. 1, p. 482; *Shearman v. Jorgenson*, 106 Cal. 483, 485, 39 P. 863. It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Freeman, 483, 5th Ed. Courts neither act as guardians for incompetent parties nor for

		those who are grossly careless of their own affairs.” (<i>See, Elm</i>, at 513.) Another ground for discretionary relief is mistake. Mistake, within the context of CCP section 473, can be a mistake of fact or a mistake of law. An example of a mistake of fact is when an attorney erroneously thought only one of two defendants he was employed to defend had been served. (<i>See, Lieberman v. Aetna Ins. Co.</i> (1967) 249 Cal.App.2d 515, 523-524.) A mistake of law must be on a legal problem where the issue is complex and debatable, a simple mistake of law is not a basis for relief. (<i>See, Standard Microsystems Corp. v. Winbond Electronics Corp.</i> (2009) 179 Cal.App.4th 868, 879.) Next, is the ground of surprise. In <i>State Farm Fire & Casualty Co. v. Pietak</i> (2001) 90 Cal.App.4th 600, the court noted that “surprise” means some condition or situation in which a party is unexpectedly injured, without any default or negligence of his own, which ordinary prudence could not have guarded against. (<i>Id.</i>, at 611, citing <i>Credit Managers Assn. v. National Independent Business Alliance</i> (1984) 162 Cal.App.3d 1166, 1173.) Finally, excusable neglect means that “... the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” (<i>See, Jackson v. Bank of America</i> (1983) 141 Cal.App.3d 55, 58.) Defendant showed relief should be granted due to Defendant’s excusable neglect. (Motion, 7:23-8:6 and 8:23-10:7; Boyle Decl., ROA No. 26, ¶¶ 1-4 and 6.) In addition, Defendant’s attorney submitted an affidavit of fault. (Hagerty Decl., ROA No. 28, ¶¶ 1-10, 12, and 13.) Defendant timely filed this motion. Defendant submitted a copy of Defendant’s proposed answer in support of this motion. (Hagerty Decl., ROA No. 28, ¶ 10, Exhibit A.) Accordingly, Defendant’s unopposed motion is granted. Defendant shall serve and file the proposed answer attached as Exhibit A to Hagerty’s declaration within 10 days. Defendant shall give notice.
2.	2024-1374052 JMAN Coastal LLC vs. Six Lanterns Homeowners Association	Plaintiff JMAN Coastal LLC’s motion to compel defendant Six Lanterns Homeowners Association (the “HOA” or “Defendant”) to provide further responses to form interrogatories, set two, no. 17.1 is denied in part and granted in part. It is denied as to 17.1 responses for RFA nos. 36, 39, and 8. It is granted as to responses to RFA nos.

42, 43, 44: further verified responses consistent with the court's order are to be served within 20 days of notice of this ruling.

No sanctions are awarded.

Legal Standard

Each answer in the response to an interrogatory must be "as *complete* and *straightforward* as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." Code Civ. Proc. § 2030.220(a), (b) (emphasis added). "Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." *Scheidt v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76 (internal quotes omitted); *see also* Code Civ. Proc. § 2023.010(f) (evasive response is ground for *sanctions*).

Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide "deftly worded conclusionary answers designed to evade a series of explicit questions." *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.

A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. (*Hunter v. International Systems & Controls Corp.*, *supra*, 56 F.R.D. 617, 625). Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response. (See C.E.B., California Civil Discovery Practice, Section 8.54 (C.E.B.1975).)

Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783.

"If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, *but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.*" Code Civ. Proc. § 2030.220(c) (emphasis added); *Regency Health Services, Inc. v. Superior Court* (1998) 64 CA4th 1496, 1504. In answering interrogatories, a party must furnish information available from sources under the party's control: "[A party] cannot plead ignorance to information which can be obtained from sources under his control." *Deyo v. Kilbourne*, *supra*, 84 Cal.App.3d at 782; *Regency Health Services, Inc. v. Superior Court*, *supra*, 64 Cal.App.4th at 1504.

A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete. Code Civ. Proc. § 2030.300(a)(1). Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. Code Civ. Proc. § 2030.300(b); § 2016.040. In the absence of agreement extending the time to file, a motion to compel further responses must be filed no more than 45 days (+ time for service by mail, email, etc.) after the verified responses, or verified supplemental responses, are served. Code Civ. Proc. §§ 2030.300(c), 2016.50.

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal. 4th 245, 255.) Monetary sanctions are available on such a motion. Code Civ. Proc. §2030.300(d).

Discussion

In its motion, Plaintiff disputes the validity of the objections set out in subsection (b) for each of the RFAs. But these are not objections to the interrogatory, these are objections to the RFA that are reiterated at 17.1(b) as part of the explanation why Defendant's response to the RFA was not an unqualified admission. The merit of those objections should be addressed, if at all, on a motion to compel further responses to the RFAs.

Beyond the objections, Plaintiff disputes the sufficiency of Defendant's response because it is not, Plaintiff contends, it is not complete and straightforward and does not reflect a reasonable investigation.

Plaintiff also argues that the information provided in Defendant's responses is insufficient because it is provided on "information and belief" rather than firsthand knowledge. But this is a standard for admissible evidence, *not* for discovery responses. Discovery responses may be hearsay. *Smith v. Superior Court In and For San Joaquin County* (1961) 189 Cal.App.2d 6, 12 ("The fact that the answer may compel the defendant to give hearsay evidence is no objection to an interrogatory.").

Having reviewed the responses in issue, the court finds the responses to form interrogatory no. 17.1 for RFA nos. 36, 39, and 8 sufficient. As to the responses for RFA nos. 42-44, the internal inconsistency of Defendant asserting a reasonable inquiry as a basis for providing no further information at the same time it asserts its investigation is not complete makes the responses insufficient. Either Defendant has made a reasonable inquiry or it has not and

		its response should so state. Defendant cannot hedge its bets by, at the same time, asserting its investigation is not complete
4.	2023-1357031 Murata vs. South Coast Real Estate & Property Management, Inc.	Defendant South Coast Real Estate & Property Management, Inc.'s Motion to Dismiss Plaintiffs' Complaint is denied. Plaintiffs move, under CCP section 389(b), for an order dismissing the "First Amended Complaint" for failure to join and serve and indispensable party. CCP section 389 governs compulsory joinder and the indispensable party doctrine (Code Civ. Proc., § 389). Under section 389, subdivision (a), a person <i>must</i> be joined as a party if, in their absence, complete relief cannot be accorded among those already parties, or if the person claims an interest relating to the subject of the action and is so situated that disposition in their absence may as a practical matter impair or impede their ability to protect that interest, or leave existing parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations. "If he has not been so joined, the court shall order that he be made a party." (Code Civ. Proc., § 389, subd. (a)). If such a person <i>cannot</i> be joined, then the court must determine "whether in equity and good conscience" the action should proceed or be dismissed without prejudice. The court should consider factors such as prejudice to absent parties, whether prejudice can be lessened, adequacy of judgment, and whether the plaintiff will have an adequate remedy if the action is dismissed (Code Civ. Proc., § 389, subd. (b)). A party objecting to a "defect or misjoinder of parties" may do so under CCP section 430.10, subdivision (d), "by demurrer or answer." (Code Civ. Proc., § 430.10, subd. (d).) If that party "fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.80, subd. (a).) "[T]he 'failure to join 'indispensable' parties does not deprive a court of the power to make a legally binding adjudication between the parties properly before it"; in other words, it is "not 'a jurisdictional defect' in the fundamental sense." (<i>Doe v. Regents of University of California</i> (2022) 80 Cal.App.5th 282, 305 [internal citations omitted].) This is because an indispensable party "is not bound by a judgment in an action in which he was not joined." (<i>Ibid.</i>) "It is for reasons of equity and convenience, and not because it is without power to proceed, that the court should not proceed with a case where it determines that an "indispensable" party is absent and cannot be joined." (<i>Sierra Club, Inc. v. California Coastal Com.</i> (1979) 95 Cal.App.3d 495, 500.)

Here, the Court finds the motion is untimely. Defendant does not claim to be the “indispensable party” that was not properly joined in this action. Rather, Defendant objects on the basis that “plaintiffs are seeking relief from the property manager for the property, a non-owner”; and, that the owner cannot be added, because the statute of limitations has run on any cause of action that Plaintiffs could bring against the owner. (Mot. at pp. 4-5.) Defendant did not demur on this ground nor raise this objection in its answer (ROA 13), accordingly, any objection based on nonjoinder has been waived. (Code Civ. Proc., § 430.80, subd. (a).)

Second, Defendant is relying on matters outside of the pleadings, and that are not subject to judicial notice, for its assertion that it is not the “owner” of the subject premises. However, Plaintiffs allege in the Complaint that “defendants ... owned, maintained, inspected, controlled, repaired, managed, and/or operated” the Property. (See Compl. at p. 5, ¶ 5.) Even if there is ambiguity in the allegations, a motion to dismiss is “generally subject to the rules pertaining to a general demurrer. Thus, the motion should be confined to matters appearing on the face of the pleading under attack or of which the court can take judicial notice.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 7:376.) The Court cannot take judicial notice of the truth of Defendant’s discovery responses, wherein it asserts someone else is the owner of the Property, either. (See *Big Valley Band of Pomo Indians v. Superior Court* (2005) 133 Cal.App.4th 1185, 1192-1193.)

Lastly, even if the Court agreed that Defendant was not the owner of the Property and that the owner was an indispensable property, dismissal would not be appropriate. Defendant argues that the owner cannot be added through Doe amendment and that the statute of limitations has otherwise expired. (Mot. at pp. 5-6.) This argument is not persuasive because Defendant has not shown that a Doe amendment would not be proper; and, the statute of limitations is an affirmative defense that can be raised, or waived, by the party asserting it (i.e., the owner, not Defendant). Thus, even if a timely objection had been raised as to the alleged nonjoinder, the proper remedy would be for the court to order Plaintiff to join the owner. After the owner is named as a defendant, then, *the owner* can bring a motion to dismiss based on section 389(b), i.e., that it cannot be joined because of the statute of limitations and that the action should be dismissed without it. (See, e.g., *Sierra Club, Inc. v. California Coastal Com.* (1979) 95 Cal.App.3d 495, 502.)

Defendant’s argument that a judgment rendered in the owner’s absence would be prejudicial is not persuasive because, as explained, above, an indispensable party would not be bound by a judgment in an action in which that party was not joined. (*Doe v. Regents of University of California* (2022) 80 Cal.App.5th 282, 305

		[an indispensable party “is not bound by a judgment in an action in which he was not joined”]; see <i>Sierra Club, Inc. v. California Coastal Com.</i> (1979) 95 Cal.App.3d 495, 501 [indispensable party “would not be bound by any judgment adversely affecting his permit and would be free to collaterally attack any such judgment”].) For all the foregoing reasons, the motion to dismiss is denied. Plaintiffs shall give notice of the ruling.
5.	2023-1365581 Morales vs. RCR Construction Services	Plaintiffs Deborah Morales’ and the Morales Family Trust’s motion to hold Defendants Mari C. Drewry and Devoted Insurance Company in contempt and request for monetary sanctions is denied. “Disobedience of any lawful judgment, order, or process of the court” is contempt of the authority of the court. (Code Civ. Proc., § 1209, subd. (a)(5).) “The substantive issues involved in a contempt proceeding are (1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience.” (<i>Conn v. Superior Court</i> (1987) 196 Cal.App.3d 774, 784.) “A contempt proceeding [for indirect contempt] is commenced by the filing of an affidavit and a request for an order to show cause.” (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286 [citing Code Civ. Proc., § 1211].) “After notice to the opposing party’s lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth.” (<i>Id.</i> at 1286.) This motion concerns Plaintiffs’ written discovery served on Defendants, to which Defendants did not respond. The Court granted motions to compel on 12/3/25 ordering Defendants to serve verified responses and pay \$2,400 in sanctions. Defendants did not pay the sanctions or serve the ordered responses. (Dariev Decl., ¶¶ 5-8.) Plaintiffs have demonstrated a valid court order, Defendants’ knowledge of the order, Defendants’ ability to render compliance, and Defendants’ willful disobedience. If the Court were to grant Plaintiffs’ motion, the next step would be to sign the OSC re contempt and hold a hearing with Defendants present. However, the Court questions what the purpose of a contempt hearing would be under the circumstances. It appears that

		Defendants are no longer participating in this litigation. (See 6/11/26 Minute Order.) While there is the outstanding sanctions order, contempt proceedings for failure to pay monetary sanctions is an unnecessary use of limited judicial resources. Plaintiffs have another, more direct option. They can enforce the sanctions order as it would a money judgment. An order for monetary sanctions is enforceable in the same way as a “money judgment;” i.e., a writ of execution may be issued by the court and levied on the property of the person sanctioned. An order imposing sanctions has the force and effect of a money judgment, and is immediately enforceable through execution. (<i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615.) The <i>Newland</i> court stated: “Weil and Brown observe that many attorneys seem to be unaware that monetary sanction orders are enforceable through the execution of judgment laws. [Citation.] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction. [Citation.]” (Ibid.) Accordingly, Plaintiffs’ motion to hold Defendants in contempt is denied. Plaintiffs’ motion for additional monetary sanctions is also denied for failure to comply with Code Civ. Proc., § 2023.040, which states that “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.”
6.	2024-1396182 E.M. Capital Investment, Inc vs. Garrison	Proposed Intervenor Bay-Valley Mortgage Group’s (“BVMG”) Motion for Leave to Intervene is denied. BVMG moves under CCP section 387, for leave to intervene as a matter of right or, in the alternative, for permissive intervention, and allowing it to file a Complaint in Intervention against the defendant in this action, Brenden Garrison (“Defendant”). (ROA 124, 124.) Plaintiffs E.M. Capital Investment, Inc. and Network Funding Group, Inc. (collectively, “Plaintiffs”) oppose the motion. (ROA 159.) Intervention is the procedure through which a nonparty to an action may become a party by requesting leave of court to join the plaintiff in claiming what is sought by the complaint, unite with the defendant in resisting the plaintiff’s claim, or demand anything adverse to both parties. (Code of Civ. Proc. § 387, subd. (a).) CCP section 387(b) is a compulsory joinder provision which permits a nonparty to intervene in litigation where it claims an “interest relating to the property or transaction which is the subject of the

action” and “disposition of the action may as a practical matter impair or impede that person’s ability to protect that interest.” (Code of Civ. Proc. § 387, subd. (b).) The test for mandatory intervention is whether the nonparty would be substantially prejudiced by a judgment rendered in its absence. (Cal. Prac. Guide: Civ. Proc. Before Trial at ¶ 2:409.) On the other hand, courts *may* permit a nonparty to intervene in the action “if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (Code Civ. Proc., § 387, subd. (d)(2).) “The permissive intervention statute balances the interests of others who will be affected by the judgment against the interests of the original parties in pursuing their litigation unburdened by others.” (*City and County of San Francisco v. State of California* (2005) 128 Cal.App.4th 1030, 1036.) “[I]t is well settled that the proposed intervener’s interest in the litigation must be direct rather than consequential, and it must be an interest that is capable of determination in the action.” (*Id.* at 1037.)

Whether intervention is mandatory or permissive, an application for intervention must be timely made. (Code Civ. Proc., § 387, subd. (d)(1), (d)(2). Timeliness does not focus on “the date the person learned of the litigation”; rather, it is measure from the time “the person attempting to intervene should have been aware his interest[s] would no longer be protected adequately by the parties.” (*Id.* at 575.)

Here, BVMG contends it has a “direct, protectable interest” in the \$539,000.00 in employee retention credits that Plaintiffs are seeking by way of this action against Defendant. BVMG points out that Plaintiffs (along with non-party, Adrian Enriquez) are suing BVMG (in the case ending -2240), based on their allegations that Plaintiffs are the “employees” of BVMG, the “employer.” BVMG further contends that, as the alleged “employer,” the employee retention credits belong to it, not Plaintiffs. (Mot. at pp. 2-3.) Plaintiffs oppose the motion on the grounds that BVMG fails to establish grounds for mandatory intervention, because “it has not established any interest at all in a potential monetary judgment in favor of Plaintiffs EMC and NFG. [BVMG’s]’s claimed entitlement to the ERC funds is derivative and contingent on establishing certain facts in the Related Action.” (Opp’n at p. 3.) With respect to permissive intervention, Plaintiffs argue that BVMG “does not have an interest in the present action that is ‘of such a direct and immediate nature’ that it will ‘either gain or lose by the direct legal operation and effect of the judgment’” because, even if Plaintiffs prevail, “they will be awarded a monetary judgment against Brenden Garrison, not the immediate receipt of ERC fund.” (Opp’n at p. 4.)

The Court finds Plaintiffs have the more persuasive argument.

		BVMG’s argument misses the mark, because it has not proffered any evidence showing that Defendant converted funds that belong to BVMG, and not Plaintiffs. BVMG argues that Plaintiffs have alleged they are the “employees” (as the Branch Manager) of BVMG, and this necessarily means BVMG is entitled to the employee retention credits as the “employer.” The written employment agreement between BVMG and Enriquez includes provisions regarding “Branch Personnel Compensation,” “Branch Personnel Time Records,” and the calculation of “Branch Expenses” and “Branch Revenues,” among other terms, but BVMG has not pointed to any provision of the agreement that gives it the right to collect employee retention credits from Plaintiffs to the extent they were applied for on Plaintiffs’ behalf. BVMG has not shown that the employee retention credits were a “source of income” or an “expense.” Even assuming for the sake of argument that BVMG may have ultimately received a benefit from Plaintiffs’ procurement of the employee retention credits, it is not clear that any credits should have been paid directly to BVMG, as opposed to paid directly to Plaintiffs, which may, in turn, affect the accounting between them, such that BVMG may have a claim for damages, but not a direct claim to the credits. Because BVMG has not proffered any evidence that it has a right to direct receipt of the employee retention credits, the motion is denied. (See <i>Knight v. Alefosio</i> (1984) 158 Cal.App.3d 716, 723 [trial court did not abuse its discretion in denying insurer right to intervene where insurance contract was silent as to subrogation rights].) Additionally, this application is untimely. BVMG has been on notice of this action since, at the latest, on or about 8/8/25, when it filed the notice of related case. (ROA 80.) The first amended complaint filed in the related case ending -7100 (on 8/6/25) reflects that BVMG knew or should have known it may have an interest in this action, which would not be adequately protected by Plaintiffs, given the litigation between them. Whether or not the hearing on this motion was advanced does not change the fact that BVMG waited months before bringing this motion. Plaintiffs shall give notice of the ruling.
7.	2023-1338703 Biltagi vs. Transamerica Life Insurance Company	The unopposed motion by Plaintiffs/Cross-Defendants Bill Biltagi and Tropical Entertainment, Inc. (collectively, “Cross-Defendants”) for judgment on the pleadings as to the first, fourth, and fifth causes of action alleged in the cross-complaint filed by Cross-Complainant Rami Fahil (“Fahil”) is denied without prejudice.

		A defendant may file a motion for judgment on the pleadings only after the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired. (Code Civ. Proc., § 438, subd. (f)(2).) Cross-Defendants have not filed an answer the Fahil’s Cross-Complaint. The Court notes it appears Biltagi attempted to file an answer on or about August 11, 2025; however, the filing was rejected by the Electronic Filing Clerk. There is no showing Cross-Defendants attempted to file an answer after Biltagi’s answer was rejected. Accordingly, the unopposed motion is denied without prejudice. Cross-Defendants shall give notice.
8.	2022-1264619 Kamell vs. Habashi	The Court denies Defendant/Cross-Complainant Yvette Habashi’s expansive Motion for summary judgment of Rafik Y. Kamell’s Complaint of her own Second Amended Cross-Complaint (SACC). As an initial matter, Kamell’s opposition was filed late. The Motion was continued, which allowed time for the reply. (ROA 526.) However, the opposition consists of a 57-page memorandum that violates the 20-page limit under California Rules of Court, rule 3.1113(d). Thus, the Court does not consider any arguments after page 20. The reply, too, was late. The moving party’s points and authorities in reply to the opposition must be served and filed at least 11 days before the date set for the hearing (unless the court shortens the period for good cause shown). (CCP § 437c(b)(4).) Here, the reply was filed with only 9 days’ notice. <u>Objections</u> Kamell’s evidentiary objections are overruled. <u>Legal Standards</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to

the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Where plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a "cause of action" entitling him or her to judgment. (CCP § 437c(p)(1); *see Hunter v. Pacific Mechanical Corp.* (1995) 37 Cal.App.4th 1282, 1287, (disapproved on other grounds by *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.)

This means that plaintiffs who bear the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. "[O]therwise, he would not be entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851; *LLP Mortg. v. Bizar* (2005) 126 Cal.App.4th 773, 776—burden is on plaintiff to persuade court there is no triable issue of material fact.)

At that point, the burden shifts to defendant (or cross-defendant) "to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (CCP § 437c(p)(1).)

A motion for summary judgment must be supported by evidence establishing the moving party's right to the relief sought. (*Regents of Univ. of Calif. v. Sup.Ct. (Roettgen)* (1996) 41 Cal.App.4th 1040,

1044.) Such evidence may consist of admissions by the opposing party. (CCP § 437c(b)(1).)

Thus, “when discovery has produced an admission or concession on the part of the party opposing summary judgment which demonstrates that there is no factual issue to be tried,” controverting affidavits submitted by that party may be disregarded. (*D’Amico v. Board of Med. Examiners* (1974) 11 Cal.3d 1, 20-22; see *Union Bank v. Sup.Ct. (Demetry)* (1995) 31 Cal.App.4th 573, 580; CCP § 2033.410, RFA admissions bind the admitting party on a summary judgment motion.)

Merits

Here, Habashi moves for summary judgment – not adjudication – of every claim in Kamell’s Complaint and in her own SACC.

When the notice of motion seeks only summary judgment, the presence of any triable issue requires denial of the motion. The court may not summarily adjudicate claims or defenses as to which no triable issue was raised unless requested in the notice of motion. (*Homestead Sav. v. Sup.Ct. (Dividend Develop. Corp.)* (1986) 179 Cal.App.3d 494, 498 (citing text).) The reason, of course, is that the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that particular claims or defenses in the case might be summarily adjudicated even though summary judgment was denied. (*Gonzales v. Sup.Ct. (General Motors)* (1987) 189 Cal.App.3d 1542, 1546 (citing text).) Thus, the Court cannot treat this Motion as one for summary adjudication of any specific claim and must resolve the Motion as a whole. Any single disputed fact requires a denial of the entire Motion.

Complaint

- (1) defamation;
- (2) negligent infliction of emotional distress;
- (3) intentional infliction of emotional distress;
- (4) interference with business advantage;
- (5) extortion;
- (6) invasion of privacy/false light; and,
- (7) declaratory relief.

		<u>SACC</u> (1) Fraud / misrepresentation (2) Legal malpractice (3) Breach of contract (4) Conversion / misappropriation (5) IIED (6) “retaliation” (see ROA 448) (7) Defamation (8) Extortion (9) Abuse of process. The deemed admitted order for Requests for Admissions, Set Two, attached as Exhibit 31 to the Motion, remove issues from trial that have been deemed admitted; but the order does not remove issues not directly admitted. For example, RFA no. 1 admitted that Kamell altered the retainer agreement, but does not indicate how it was altered. Kamell disputes the specific alterations, which create a triable issue of material fact. Thus, triable issues of disputed fact exist as to some elements of the claims. Moreover, Habashi has not met her burden to show the damages in the SACC in addition to return of \$55,945.61. The SACC asks for compensatory damages in addition to restitution. Habashi also asks for injunctive relief, which is not supported by the Motion. Thus, while some of the claims in the Complaint and SACC could have been summarily adjudicated, the Motion as a whole for summary <i>judgment</i> must be denied. Habashi is ordered to serve notice.
9.	2024-1433160 COVARUBIAS vs. FCA US, LLC.	Defendant FCA US, LLC’s demurrer to Plaintiff Mary Covarubias’ First Amended Complaint is sustained with 30 days leave to amend. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be

accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

Defendant contends that all of Plaintiff's claims are time-barred by the statutes of limitations in Cal. U. Com. Code, § 2725 and Code Civ. Proc., § 338(d).

Cal. U. Com. Code, § 2725 provides that the statute of limitations for Plaintiff's Song-Beverly claims (i.e., "an action for breach of any contract for sale") is four years. (See *Mexia v. Rinker Coat Co., Inc.* (2009) 174 Cal.App.4th 1297 ["the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code . . . '(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered"].)

Where a complaint on its face appears time-barred, the plaintiff must affirmatively "plead around" the statute of limitations defense. (See, e.g., *Lewis v. Security-First Nat. Bank of Los Angeles* (1943) 58 Cal. App. 2d 827, 829 [The delayed discovery rule is not satisfied by the mere allegation that plaintiff did not discover the fraud prior to a designated date.]) Moreover, the plaintiff must plead those facts with particularity, like he would a fraud cause of action. (*Weinstock v. Eissler* (1964) 224 Cal.App.2d 212, 227-228 ["plaintiff must state in his complaint when the discovery was made, the circumstances under which it was made, and facts to show that [he] is not at fault for not having made an earlier discovery, and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry."])

Plaintiff alleges in the FAC that he purchased the subject vehicle more than ten years ago, on 10/2/14. (FAC, ¶ 7.) Plaintiff alleges a number of times starting from June 27, 2016, to November 30, 2022, during which he presented the vehicle for various repairs. (FAC, ¶¶ 15-20.) Plaintiff alleges that he discovered Defendants' wrongful conduct shortly before filing the Complaint. (FAC, ¶ 15.)

He alleges that the statute of limitations has been tolled due to a separate class action, the discovery rule, repair doctrine, fraudulent concealment, and Covid. (FAC, ¶¶ 52-70.)

		The allegations are extremely general and not pled with particularity as required in <i>Weinstock, supra</i>, 224 Cal.App.2d at 227-228. Plaintiff does not state any facts regarding the circumstances of his discovery of Defendant's alleged wrongful conduct. With respect to the fraud cause of action, the statute of limitations is only three years pursuant to Code Civ. Proc. § 338(d). Plaintiff alleges in a somewhat conclusory fashion that Defendant concealed material facts about the vehicle's alleged defects, intending to induce Plaintiff to purchase it. (FAC ¶¶ 59-65.) Plaintiff fails to specifically plead facts to circumvent Defendant's statute of limitations defense. Accordingly, based on the foregoing, the Court sustains Defendant's demurrer in its entirety with leave to amend. The motion to strike is moot as a result. Defendant FCA US, LLC shall give notice.
10.	2025-1477322 Gonzales vs. General Motors, LLC	Defendant General Motors, LLC's demurrer to Plaintiffs Mary Gonzales' and Hector Gonzales' Second Amended Complaint ("2AC") is overruled. Defendant's request for judicial notice is granted. <u>1st-3rd causes of action</u> Defendant argues that Plaintiffs' 1st-3rd Song-Beverly causes of action are barred by Code Civ. Proc., § 871.21, a statute effective 1/1/25, which provides in part: (a) An action covered by Section 871.20¹ shall be commenced within one year after the expiration of the applicable express warranty. (b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle. that claims made pursuant to Civ. Code, § 1793.2(b) or (d) "shall not be brought later than six years after the date of original delivery of the motor vehicle."

¹ Code Civ. Proc., § 871.20 specifies that this chapter in the code applies to any action "[s]eeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of [Civil Code] Section 1793.2," (Code Civ. Proc., § 871.20(a).)

Plaintiffs allege in the 2AC that the vehicle was leased on 8/2/15. (2AC, ¶ 6.)

Plaintiffs' Complaint was not filed until 4/22/25. Defendant characterizes § 871.21(b) as a statute of repose which would have expired on 8/2/21.

In opposition, Plaintiffs argue that the retrospective application of this statute violates their due process rights, citing to *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-23, in which the Court held: "where the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party."

The Court agrees. After careful consideration of the available legal authority, the Court determines that because there is no indication in the legislative history of § 871.21 that application should be retroactive, the statute only applies prospectively. (See *Evangelatos v. Superior Ct.* (1988) 44 Cal. 3d 1188, 1193-94; *Quarry v. Doe I*, (2012) 53 Cal.4th 945 ("In construing statutes, there is a presumption against retroactive application unless the Legislature plainly has directed otherwise by means of express language of retroactivity or ... other sources that provide a clear and unavoidable implication that the Legislature intended retroactive application."); *Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal. App. 2d 40, 42-43 ("a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations.... Even when applied prospectively, the claimant must be allowed a reasonable time within which to proceed with his cause of action.") (citation omitted).)

The Court disagrees with Defendant's argument that the three-month grace period between when Governor Newsom signed AB 1755 (which created Section 871.20 et seq) into law and the law took effect constitutes a reasonable time to file suit. (See *Newman v. Emerson Radio Corp.* (1989) 48 Cal.3d 973, 983; *Sznyter v. Malone* (2007) 155 Cal.App.4th 1152, 1162.)

In their 2AC, Plaintiffs have added more specific allegations in the Second Amended Complaint to support the tolling of the statute of limitations. In ¶ 15, Plaintiffs allege that they "only discovered

Defendant's wrongful conduct alleged herein around March 10, 2025, when Plaintiffs presented the Vehicle to Defendant's authorized repair facility with complaints including, inter alia, rough idle. Defendant's technicians inspected the Vehicle, verified Plaintiffs' complaints, and indicated that the engine lifters would need to be replaced at a significant cost, despite the lifters being replaced shortly prior to this under warranty."

Based on the foregoing, the Court overrules the demurrer to the 1st-3rd causes of action.

4th cause of action for breach of implied warranty

Plaintiffs' cause of action for breach of implied warranty is subject to a four-year statute of limitations. (Comm. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.)

Cal. U. Com. Code, § 2725 provides in part (emphasis added):

- (1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. By the original agreement the parties may reduce the period of limitation to not less than one year but may not extend it.
- (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.

There is legal authority providing that the implied warranty of merchantability under the Song-Beverly Act extends to future performance. Civil Code 1791.1(c) states: "The duration of the implied warranty of merchantability ... shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer."

And the Court of Appeal in *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304 states that the "implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." The Court held that that "by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied

		warranty could be breached after delivery,” which “is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (<i>Id.</i> at 1309.) Furthermore, in <i>Krieger v. Nick Alexander Imports, Inc.</i> (1991) 234 Cal.App.3d 205, 217, the court noted that a “promise to repair defects that occur during a future period is the very definition of express warranty of future performance....” (See also <i>Jones v. Credit Auto Center, Inc.</i> (2015) 237 Cal.App.4th Supp. 1, 9 (“By providing a duration period for the implied warranty of merchantability, [the statute] contemplates that a breach may occur either when the goods are first purchased, or afterwards, when a latent defect is discovered by the buyer.”).) Here, as noted above, Plaintiff has added more specific allegations in the Second Amended Complaint to support the tolling of the statute of limitations. (SAC, ¶¶ 15, 16.) Therefore, the demurrer is also overruled to this cause of action. Plaintiffs shall give notice.
11.	2025-1489215 Mosley vs. Givargis	The court is inclined to grant defendant Ronald Givargis’ unopposed motion to vacate the default entered against him in this action if he presents his proposed answer or pleading to the court. The court will hear from Defendant and plaintiff Loyd Mosley’s counsel. The law favors a trial on the merits, and doubts in applying Code of Civil Procedure section 473 are resolved in favor of the party seeking relief from default. <i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526. If a party moves promptly for default relief, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), only <i>slight</i> evidence will justify an order granting such relief. <i>Ibid.</i> For this reason, “a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 696 (citations omitted). The most fundamental of those principles is that affirmed in <i>Au-Yang v. Barton</i> (1999) 21 Cal.4th 958, 963, 90 Cal.Rptr.2d 227, 987 P.2d 697: “[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (<i>Ibid.</i>, Citing among other cases, <i>Weitz v.</i>

		<i>Yankosky</i> (1966) 63 Cal.2d 849, 855, 48 Cal.Rptr. 620, 409 P.2d 700 (<i>Weitz</i>).) <i>Id.</i> Code of Civil Procedure section 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” The procedural requirements for relief from default are: (1) timeliness; (2) submission of proposed pleadings; and (3) proper ground. Code Civ. Proc. § 473(b); <i>Cruz v. Fagor America, Inc.</i> (2006) 146 Cal.App.4th 488, 495. The proposed pleading may be presented at the hearing. <i>Carmel, Ltd. v. Tavoussi</i> (2009) 175 Cal.App.4th 393, 403. <i>See also Dollase v. Wanu Water, Inc.</i> (2023) 93 Cal.App.5th 1315, 1326 (finding attempt to file and subsequent courtesy copy to court sufficient). Here, Plaintiff apparently attempted to file a responsive pleading. [ROA #34.]
12.	2024-1381501 Cisneros vs. Lu	The general and special demurrer by Cross-Defendant California Escrow Group, Inc. (“Escrow Company”) to the sixth, seventh, and eighth causes of action alleged against Escrow Company in the Second Amended Cross-Complaint (“SACC”) filed by Cross-Complainants Ying Lu and Nestwise Group (collectively, “Cross-Complainants”) and Escrow Company’s unopposed motion to strike portions of the SACC are moot. Escrow Company challenges the SACC filed on November 13, 2025. On April 23, 2026, Cross-Complainants filed a Third Amended Cross-Complaint. (ROA NO. 201.) Thus, Cross-Complainants’ TACC supersedes the SACC, and the latter “ceases to have any effect either as a pleading or as a basis for judgment.” (<i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-31.) Accordingly, the demurrer is overruled as moot and the unopposed motion to strike is denied as moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477.) Cross-Complainants shall give notice.